

Recall & Removal

Seven distinct ways a constitutional officer leaves before their term ends. Different officers, different thresholds, different deciders — but one rule applies to every single one of them.

WHO REMOVES WHOM — AND HOW

OFFICER	MECHANISM	THRESHOLD	DECIDED BY
Civic Consul	Constructive vote of no confidence — names a successor in the same motion	60% Assembly	Assembly alone §2.6
Legat Consul	Legislative track, or Senate-referred popular track	2/3 both chambers or 60% referendum	Legislature or electorate §2.13
SC Justice	For-cause only — breach, certified incapacity, or disqualifying conviction	2/3 both chambers	Legislature, concurrent vote §4.3.b
Inferior Court Judge	Three tracks: legislative removal, judicial discipline (SC-overseen), or criminal conviction	2/3 both chambers (legislative track)	Legislature, courts, or criminal process §4.2
Monitor Generals & independent officers	Standard track — SC reviews category only, not facts	SC confirms grounds (14 days) → 2/3 both chambers	Legislature, SC gatekeeps §9.14
LC-domain officers & inferior judges	Assembly-initiated removal — impeachment-style inquiry and trial	1/3 opens → absolute majority charges → 2/3 Senate convicts	Assembly then Senate §3.10
Assembly / Senate Member	Expulsion by the member's own chamber	2/3 own chamber	Their own chamber §3.2 · §3.5
Assembly / Senate Member	State recall — must be punitive or political; cannot violate this Constitution	State-defined	State legislature or voters §3.2 · §3.5

§3.11

The one rule that applies to every row above: expulsion, recall, and removal under any provision of this Constitution are civil and political processes. None of them constitute a criminal or civil legal proceeding, and none of them protect the removed officer from criminal prosecution or civil liability for the underlying conduct. A removed officer can still be charged. Constitutional accountability and criminal accountability run on separate tracks — always.

TWO DESIGN DETAILS WORTH KNOWING

The Early Departure Clause

A member who resigns, is expelled, or is recalled at any point during a term is deemed to have served that full term for cooling-off purposes. Closes the obvious bypass — leaving early no longer resets the consecutive-term clock. Applies identically to Assembly members and senators.

The Election Blackout

SC justice removal, the Monitor standard track, and judicial discipline all share the same protection: no removal vote within 180 days of a major national election without prior SC review. Removal proceedings can't be timed to swing a race.

NUMBERS WORTH REMEMBERING

60%

of full seated Assembly removes the Civic Consul — the same threshold the SC formation seniority-fallback CC is protected by.

14

days for the SC to confirm removal grounds on the §9.14 standard track — SC silence at day 14 counts as confirmed, not denied.

6 mo

cooldown after a failed §9.14 removal attempt before the same or substantially similar grounds can be reinitiated.